

**CHAPTER clxxxviii.**

An Act to confirm a Provisional Order made under the Private Legislation Procedure (Scotland) Act 1899 relating to Edinburgh and District Water. A.D. 1904.

[15th August 1904.]

WHEREAS His Majesty's Secretary for Scotland has made the Provisional Order set forth in the Schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the Schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Edinburgh and District Water Order Confirmation Act 1904. Short title.

A.D. 1904.

SCHEDULE.

EDINBURGH AND DISTRICT WATER.

Provisional Order to authorise the Edinburgh and District Water Trustees to construct additional works and to sanction certain works already constructed to postpone the obligation of constant supply and pressure to authorise the purchase of additional lands to establish an employees' allowance fund to increase the public water rate to borrow further money and for other purposes.

WHEREAS by the Edinburgh and District Waterworks Act 1869 (in this Order referred to as "the Act of 1869") the Edinburgh and District Water Trustees (in this Order called "the Trustees") were incorporated for the purpose of supplying water within the limits therein mentioned :

And whereas by the following Acts namely the Edinburgh and District Waterworks (Additional Supply) Act 1874 (in this Order referred to as "the Act of 1874") the Edinburgh and District Waterworks Act 1876 (in this Order referred to as "the Act of 1876") the Edinburgh and District Waterworks Act 1877 (in this Order referred to as "the Act of 1877") the Edinburgh and District Waterworks Act 1880 (in this Order referred to as "the Act of 1880") the Edinburgh and District Waterworks Act 1889 (in this Order referred to as "the Act of 1889") the Edinburgh and District Waterworks (Additional Supply) Act 1895 (in this Order referred to as "the Act of 1895") the Edinburgh and District Waterworks Act 1898 (in this Order referred to as "the Act of 1898") and the Edinburgh and District Waterworks Order 1901 (in this Order referred to as "the Order of 1901") further powers were conferred on the Trustees in relation to their undertaking which said several Acts and Order together with the Act of 1869 hereinbefore mentioned are in this Order referred to as "the recited Acts" :

And whereas the Trustees were authorised by the Act of 1895 to bring in an additional supply of water from the Talla Water in the county of Peebles and to acquire the lands and to construct and maintain the waterworks and other works in that Act described

and by the Act of 1898 to make deviations of certain parts of the said works : A.D. 1904.

And whereas it is expedient that the Trustees should be empowered to construct the works hereinafter mentioned so far as the same are not constructed and to acquire the lands hereinafter mentioned for the purposes of the said works and that so far as any such works are already completed the same should be sanctioned and confirmed :

And whereas it is expedient that the deviated portion of the Trustees' Railway hereinafter mentioned should be sanctioned and confirmed :

And whereas by the Act of 1895 the Trustees were required after the expiration of ten years from the fifteenth day of May one thousand eight hundred and ninety-five being a period commensurate with the time limited by that Act for the completion of the works thereby authorised to create a sinking fund as therein provided for the repayment of borrowed money for the purposes thereof and by the Act of 1898 and the Order of 1901 the said provisions were also made applicable to money borrowed for the purposes thereof :

And whereas by the Order of 1901 the period for the creation of a sinking fund was extended to fifteen years from the said fifteenth day of May one thousand eight hundred and ninety-five as therein set forth and it is expedient that the provisions with respect to the same should be made applicable to money to be borrowed for the purposes of this Order :

And whereas it is expedient that the Trustees should provide a sinking fund for the redemption of the annuities granted by the Trustees under the Act of 1869 in the manner and to the effect hereinafter provided :

And whereas by the Order of 1901 the Trustees were for a period of five years from the commencement thereof or until the completion of the Talla works and the introduction of water therefrom relieved of the obligation to have water constantly laid on under pressure within any part of the limit of the said Order or the limits of compulsory supply and it is expedient that the said period should be further extended :

And whereas it is expedient to increase the public water rate authorised by the recited Acts as hereinafter mentioned :

And whereas it is expedient that the Trustees should be empowered to make and grant allowances to aged and disabled employees of the Trustees as hereinafter provided :

A.D. 1904.

And whereas it is expedient that the Trustees should be authorised to levy rates and to borrow and raise further money for the purposes of their waterworks and for the purchase of lands and for the general purposes of their undertaking and this Order :

And whereas it is expedient that the other powers in this Order mentioned should be conferred on the Trustees :

And whereas plans and sections showing the lines situations and levels of the works authorised by this Order and of the lands authorised to be acquired for the purposes thereof and a book of reference thereto containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of such lands which may be taken for the purposes or under the powers of this Order were duly deposited with the principal sheriff clerks of the county of Midlothian and Peebles respectively and with the sheriff clerk of the county of the city of Edinburgh and are in this Order referred to as the deposited plans and book of reference :

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

Short title.

1. This Order may be cited for all purposes as the *Edinburgh and District Waterworks Order 1904* and shall come into operation on the date of the passing of the Act confirming the same which date is in this Order referred to as “the commencement of this Order.”

Interpre-
tation.

2. In this Order the several words and expressions to which meanings are assigned in the recited Acts and in any Acts wholly or partially incorporated with those Acts shall have the meanings attached to them in the recited Acts unless there be something in the subject or context repugnant to such construction and subject to the variations and amendments following (that is to say) :—

The expression “the city of Edinburgh” means and includes the city and royal burgh of Edinburgh according to the boundaries thereof existing at the commencement of this Order ;

The expression “the undertaking” shall in addition to the undertaking defined in the Act of 1895 in the Act of 1898 and in the Order of 1901 include the works authorised or

sanctioned by and the lands and property to be acquired under and the rights powers authorities and privileges authorised and conferred by this Order ;

A.D. 1904.

The expression "limits of compulsory supply" means the limits for the compulsory supply of water by the Trustees existing at the commencement of this Order and hereinafter in this Order referred to.

3. This Order and the recited Acts may be cited as the Edinburgh and District Waterworks Acts 1869 to 1904.

Citation of recited Acts and this Order.

4. The following Acts and parts of Acts (so far as the same respectively are applicable for the purposes and are not inconsistent with or varied by the provisions of this Order) are hereby incorporated with this Order :—

Incorporation of Acts.

The Lands Clauses Acts :

The Waterworks Clauses Acts 1847 and 1863 with the exceptions specified in the recited Acts :

The clauses of the Railways Clauses Consolidation (Scotland) Act 1845 with respect to the temporary occupation of land near the railway during the construction thereof and the crossing of roads and other interference therewith and in construing the said clauses for the purposes of this Order the word "company" shall mean the Trustees and the word "railway" the filters and service reservoirs and works immediately connected therewith authorised by this Order and the words "centre of the railway" any part of the said works :

The Commissioners Clauses Act 1847 with the exceptions specified in the recited Acts.

5. Subject to the provisions of this Order the Trustees may make construct execute maintain and use the works hereinafter described or some of them or some part or parts thereof together with all such proper embankments reservoirs dams scour drains connections gauges pumps water wheels roads approaches ways pipes conduits tunnels cuts channels sluices weirs catchpits and all other works and conveniences connected therewith or incidental thereto as may be necessary or proper and may enter upon take and use such of the lands described in the deposited plans and book of reference as they may require for those purposes The works before referred to are the following (that is to say) :—

Power to construct works.

A conduit aqueduct or line of pipes (Work No. 1) wholly situated in the city parish of Edinburgh and county of the

A.D. 1904.
—

city of Edinburgh and county of Midlothian commencing by a junction with the Trustees' 22-inch main in Mayfield Road ex adverso the north-east corner of the field No. 575 on the 25-inch Ordnance Survey map of the parish of Liberton 1896 and terminating in Morningside Road in the city parish of Edinburgh at the south abutment of the bridge carrying the said road over the Edinburgh Suburban and South Side Junction Railway of the North British Railway Company :

Additional filters pure water tanks settling ponds and screening wells &c. (Work No. 2) in and near the land belonging to the Trustees at Alnwickhill in the parish of Liberton and county of Midlothian :

A conduit aqueduct or line of pipes (Work No. 3) commencing by a junction with the Trustees' 16-inch main in Colinton Road opposite to the Trustees' measuring house and pure water tank at Firhill and terminating at a point in the Comiston Road two hundred and fifty yards or thereby measured in a southerly direction along said road from the point where it crosses the Braid Burn which said intended conduit aqueduct or line of pipes will be situated in the parish of Colinton and county of Midlothian and city parish of Edinburgh or one of them :

A conduit aqueduct or offlet (Work No. 4) commencing at a point in the parish of Liberton and county of Midlothian on the public road leading from Cameron Toll to Musselburgh eight yards or thereby measuring in a westerly direction from the centre of Peffermill Bridge and terminating at a point in the city parish of Edinburgh and county of the city of Edinburgh and county of Midlothian by a junction with the city sewer at a point twenty-seven yards or thereby measured in a northerly direction from the most southerly corner of the field No. 596 on the 25-inch Ordnance map (1895) of the city parish of Edinburgh which said intended conduit aqueduct or offlet will be situated in the parish of Liberton and county of Midlothian and city parish of Edinburgh or one of them :

A conduit aqueduct or offlet (Work No. 5) wholly situate in the parish of Liberton and county of Midlothian commencing at a point in the public road from Cameron Toll to Musselburgh twenty-five yards or thereby measured in a westerly direction from the centre of the bridge carrying said road

over the Niddrie Burn and terminating at a point in the Niddrie Burn forty-four yards or thereby measured in a north-westerly direction from centre of said bridge: A.D. 1904.

A conduit aqueduct or offlet (Work No. 6) situate in the parishes of Inveresk and Liberton or one of them and county of Midlothian commencing at a point in the public road from Cameron Toll to Musselburgh one hundred and ten yards or thereby measured in a south-westerly direction from the centre of the bridge carrying said road over the North British Railway at Newhailes Station and terminating at a point in the boundary between the said parishes of Inveresk and Liberton one hundred and forty yards or thereby measured in a north-westerly direction from the centre of the said bridge :

A service reservoir (Work No. 7) (hereinafter called " Carberry Mains Service Reservoir ") wholly situate in the parish of Inveresk and county of Midlothian to be constructed in the fields Nos. 97 and 121 or one of them on the 25-inch Ordnance Survey map (1894) of the parish of Inveresk :

An aqueduct conduit or line of pipes (Work No. 8) commencing at Niddrie Mill cross roads in the parish of Liberton and county of Midlothian and terminating in the said Carberry Mains Service Reservoir in the parish of Inveresk and county of Midlothian which aqueduct conduit or line of pipes will pass from in through or into the parishes of Liberton Newton and Inveresk or some one or more of them in the county of Midlothian :

An aqueduct conduit or line of pipes (Work No. 9) wholly situate in the parish of Inveresk and county of Midlothian commencing in the said Carberry Mains Service Reservoir and terminating at or near the point where the main road from Musselburgh to Haddington crosses the county boundary of Mid and East Lothian :

A conduit aqueduct or offlet (Work No. 10) wholly situate in the parish of Liberton and county of Midlothian commencing at a point in the land belonging to the Trustees in the wall or fence separating the fields Nos. 519 and 528 on the 25-inch Ordnance Survey map (1894) of the parish of Liberton three yards or thereby measured in an easterly direction along the fence from the extreme south-west corner of the said field No. 528 and terminating in the Swanston Burn ten yards

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or thereby measured in a south-easterly direction from the centre of Bow Bridge across said burn :

A conduit aqueduct or line of pipes (Work No. 11) commencing in the parish of Lasswade by a junction with the Aqueduct No. 1 of the Act of 1898 at or near a point where said aqueduct crosses the public road leading from Edinburgh to Penicuik by Seafield and terminating in the parish of Glencorse by a junction with the Aqueduct No. 1 of the Act of 1895 at a point in the public road from Edinburgh to West Linton fifty yards or thereby measured in a northerly direction from the centre of the bridge called Glencorse or Flotterstone Bridge which said intended conduit aqueduct or line of pipes will pass from through or into the parishes of Lasswade and Glencorse or one of them and county of Midlothian :

A conduit or aqueduct (Work No. 13) wholly situate in the parish of Glencorse and county of Midlothian commencing at the Glencorse Filters belonging to the Trustees and terminating by a connection with the said Work No. 11 at or near its point of termination aforesaid :

A widening (Work No. 16) on the east side of the existing public road and of Flotterstone Bridge carrying said public road over the Glencorse Burn wholly situate in the parish of Glencorse and county of Midlothian commencing at a point thirty-five yards or thereby measured in a southerly direction along said public road from the centre of said bridge and terminating at a point sixty yards or thereby measured in a northerly direction along said public road from the centre of said bridge :

A conduit aqueduct or offlet (Work No. 17) commencing at a point in the Deviation No. 3 of the Act of 1898 at or near a point where the said deviation crosses the wall or fence separating field No. 259 and plantation No. 311 on the 25-inch Ordnance Survey map (1894) of the parish of Glencorse and terminating in the Dean Burn at or near the point where the said Dean Burn crosses under the public road from Edinburgh to Penicuik which said intended conduit aqueduct or offlet will be wholly situated in the parish of Glencorse and county of Midlothian :

A conduit aqueduct or line of pipes (Work No. 18) wholly situated in the parish of Linton and county of Peebles

commencing at a point ten yards or thereby measured in a south-westerly direction along the Cairn Burn from the centre of the bridge carrying the public road over said burn and terminating at the east corner of Deepsykehead Farm-house: A.D. 1904.

A conduit aqueduct or offlet (Work No. 19) commencing in the united parishes of Broughton Glenholm and Kilbucho at the north end of the tunnel through Wrae Hill (Diversion No. 1 of the Act of 1898) and terminating in the said united parishes at a point in the tail race from Rachan Saw Mill immediately above its junction with the Holms Water which said intended aqueduct conduit or offlet will be wholly situated in the said united parishes of Broughton Glenholm and Kilbucho and county of Peebles:

A conduit aqueduct or offlet (Work No. 20) commencing at the well at the south end of the syphon laid across the River Tweed (Aqueduct No. 1 of the Act of 1895) and terminating in the River Tweed fifty yards or thereby measured in an easterly direction from the south-east corner of the south abutment carrying the railway belonging to the trustees and aqueduct over said River Tweed which said intended conduit aqueduct or offlet will be wholly situated in the parish of Tweedsmuir and county of Peebles:

A road (Work No. 21) to be situated wholly in the parish of Tweedsmuir and county of Peebles commencing at a point on the existing public road leading from Tweedsmuir to St. Mary's Loch five hundred yards or thereby north of its intersection with the centre line of the Talla Reservoir embankment (Work No. 2 of the Act of 1895) and terminating at a point at or near the eastern end of said embankment by a junction with the diversion of the public road (Work No. 3 of the Act of 1895).

6. The Trustees may in constructing the works by this Order authorised deviate laterally from the lines thereof, as shown on the deposited plans to the extent of the limits of lateral deviation shown thereon and when the line of any work is shown on those plans as passing along any road and no limits of lateral deviation are marked on the deposited plans the Trustees may in making such work deviate laterally to any extent within the boundaries of such road and the Trustees may also deviate vertically from the levels of the works authorised by this Order as shown on the deposited sections

Power to
deviate
laterally and
vertically.

A.D. 1904. — to any extent not exceeding five feet upwards and to any extent downwards Provided that in the exercise of such powers of vertical deviation the Trustees shall not lay above ground any pipe unless and except so far as is shown on the deposited sections.

For protec-
tion of North
British
Railway
Company.

7. The following provisions for the protection of the North British Railway Company (hereinafter called "the North British Company") shall unless otherwise agreed between the Trustees and the North British Company apply and have effect (that is to say) :—

(1) Where any conduit aqueduct or line of pipes by this Order authorised is intended to pass under and across or upon any railway or bridge or other property of the North British Company or worked or used by that Company or is intended to be carried over and across any railway or other property of the North British Company or worked or used by that Company upon any bridge crossing the same all works of the Trustees for and connected with laying down executing or subsequently maintaining repairing or renewing such conduit aqueduct or line of pipes or other work shall be executed and subsequently maintained repaired and renewed under the superintendence and to the reasonable satisfaction of the engineer of the North British Company and according to plans sections and specifications and in such manner and of such material as shall previously be approved by such engineer and in all things by and at the expense of the Trustees :

(2) In particular and without prejudice to the generality of subsection (1) hereof the following additional provisions shall apply to aqueduct conduit or line of pipes (Work No. 8) authorised by this Order where it crosses the River Esk upon the viaduct which carries the Edinburgh and Berwick Railway of the North British Company over that river at Inveresk :—

(a) The said aqueduct conduit or line of pipes so far as upon the said viaduct shall be properly boxed in by the trustees and protected from injury ;

(b) Stop valves shall be provided at both ends of the viaduct so that the water can be shut off in the event of accident or otherwise and keys for the working of the valves shall be provided to be kept

in the adjoining signal cabin the North British Company being bound to give immediate notice to the Trustees of any such accident;

(c) The Trustees shall if called upon by the North British Company run a cast metal rail along the cope of the existing parapet of the viaduct;

(d) In the event of the North British Company at any future time carrying out any work or operations on the viaduct necessitating interference with the said aqueduct conduit or line of pipes the whole cost of the alterations on the said aqueduct shall be borne and paid by the Trustees the North British Company being bound to give reasonable notice to the Trustees before interfering with the said aqueduct; and

(e) The North British Company shall not be responsible for any accident that may at any time happen to the said aqueduct conduit or line of pipes so far as upon or near to said viaduct or for any injury that the same may at any time sustain from whatever cause arising:

(3) The Trustees shall not enter upon or interfere with the railways works or lands belonging to the North British Company further or otherwise than may be necessary for constructing maintaining and effecting repairs to any works of the Trustees authorised by this Order to be laid under across over or upon any such railway work or land and they shall not alter or interfere with the lines or levels of any such railway or work and shall not take or acquire any property of the North British Company under the powers conferred by this Order but shall only acquire such an easement or servitude through over or in any land or property of the North British Company as may be required for making maintaining repairing and using the works of the Trustees in accordance with the provisions of this Order:

(4) All the works and operations of the Trustees under this Order shall be constructed executed and done so as not to cause any injury to the railways and works (including telegraphs and telegraph poles) of the North British Company or any interruption to the passage or conduct of traffic over the railways:

A.D. 1904.

(5) If any such injury or interruption shall arise from or be in any way owing to the works or operations of the Trustees or the bursting or leakage of any aqueduct conduit or line of pipes or other work of the Trustees the Trustees shall make good or remove such injury or interruption at their own expense or the North British Company may do the same and the Trustees shall pay the North British Company all costs and expenses loss or damage incurred or sustained by them in respect thereof:

(6) If any difference shall arise between the Trustees and the North British Company or between their respective engineers as to the meaning of this section or as to any plans or sections or as to the mode of executing any works or as to any cost loss or damage provided for in this section such difference shall be determined by the sheriff of the Lothians and Peebles on the application of either the Trustees or the North British Company and the costs of any such reference shall be borne and paid by the Trustees.

Sanction of
deviated
portion of
Trustees'
railway.

8. The deviated portion of the Trustees' railway authorised by the Act of 1895 hereinafter mentioned is hereby sanctioned and confirmed and shall for all purposes form part of the undertaking of the Trustees (that is to say):—

A deviation or diversion wholly situated in the parish of Drummelzier and county of Peebles commencing at a point four miles five and a quarter furlongs or thereabouts from the commencement of the Railway No. 1 authorised by the Act of 1895 and terminating at a point six miles seven furlongs three chains or thereby from the commencement of said Railway No. 1:

Provided that the agreement contained in the second schedule of the Act of 1895 shall so far as the same is applicable apply to the said deviated portion of railway in the same way and to the same effect as the said agreement applies to the railway as authorised by the said Act.

Confirming
agreement
with Lord
Elphinstone.

9. The agreement contained in the Schedule to this Order made between Lord Elphinstone of Carberry and the Trustees is hereby confirmed and shall be carried out according to the true intent and meaning thereof.

10. For the purposes and during the execution of the several works which the Trustees are by this Order authorised to make and in maintaining the same and subject to the provisions of this Order the Trustees may from time to time in any of the lands shown on the deposited plans and specified in the deposited book of reference break up or cross over or under and temporarily alter stop up or divert any streets highways roads lanes paths bridges railways canals passages sewers drains streams watercourses gas pipes and water pipes and electric or telephonic apparatus which they may from time to time find it expedient for any of those purposes so to interfere with on giving three days' notice and providing a proper temporary substitute before interrupting the traffic on any such street highway or railway or the flow of water gas sewage or electricity in any such sewer drain stream watercourse pipe or apparatus and making full compensation to all persons injuriously affected by anything done under the provisions of this section Provided that nothing in this section shall extend to or authorise any interference with electric apparatus or other property of His Majesty's Postmaster-General Provided also that nothing in this section shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 to 1902 to which the provisions of section 15 of the Electric Lighting Act 1882 apply.

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Power to
alter roads
&c. tem-
porarily.

11. The Trustees may subject to the provisions of this Order take by agreement and any person by the Lands Clauses Acts or otherwise enabled to sell lands may grant to them any servitude right or privilege (not being a servitude right or privilege of water in which others than the grantors have an interest) in or over affecting or belonging to lands at a price or yearly rent feu duty or otherwise but in the case of a person not enabled otherwise than by the said Acts to sell lands then subject and according to the provisions relative to the taking of lands by agreement contained in the said Acts and for the purposes of this section any such servitude right or privilege shall be deemed to be lands within the meaning of those Acts.

Power to
agree for
servitudes
&c.

12. The Trustees may at any time for the purpose of repairing or of cleansing any existing works or any of the works or aqueducts authorised by this Order cause the water in any such works or aqueducts to be temporarily discharged into any available drain stream or watercourse.

Powers for
repair of
aqueducts
and tem-
porary dis-
charge of
water into
streams.

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In the exercise of the power conferred by this section the Trustees shall do as little damage as may be and shall make full compensation to all persons for any damage sustained by them by reason or in consequence of the exercise of such power the amount of compensation to be settled in case of difference by arbitration.

Limiting
time for
exercise of
compulsory
powers of
purchase.

13. The powers of the Trustees for the compulsory purchase of lands for the purposes of the works authorised by this Order shall cease after the expiration of three years from the commencement of this Order.

Period for
completion
of works.

14. If the works authorised by this Order are not completed within six years from the commencement of this Order then on the expiration of that period the powers by this Order granted to the Trustees for executing any of the said works not so completed or in relation thereto shall cease except as to so much thereof as is then completed but nothing herein contained shall restrict the Trustees from maintaining using extending enlarging altering replacing relaying duplicating increasing adding to or removing any of their conduits aqueducts mains or pipes filter beds tanks and other works for the purpose of supplying water within the limits of this Order and for the purposes of the Trustees' undertaking.

Restriction
on taking
houses of
labouring
class.

15. The Trustees shall not under the powers of this Order purchase or acquire in any district within the meaning of the Public Health (Scotland) Act 1897 ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Secretary for Scotland ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

If the Trustees acquire or appropriate any house or houses under the powers by this Order granted in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Secretary for Scotland by action in the court of session and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the court may if it think fit reduce such penalty.

For the purposes of this section the expression "labouring class" includes mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others

except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any such persons who may be residing with them And "house" means any house or part of a house occupied as a separate dwelling. A.D. 1904.

16. The Trustees notwithstanding anything to the contrary contained in the Waterworks Clauses Acts 1847 and 1863 or in the recited Acts shall not until the expiration of six years from the commencement of this Order or until the waterworks authorised by the Act of 1895 and the Act of 1898 and this Order shall have been completed and the water from the Talla been introduced (whichever shall first happen) be bound to have the water constantly laid on under pressure within any part of the limits of this Order or the limits of compulsory supply. Suspension
of constant
supply.

17. For the purposes of the recited Acts and this Order the limits of compulsory supply are the city of Edinburgh and the town of Leith including the port thereof and the limits of this Order are the limits of the Act defined in the recited Acts. Limits of
compulsory
supply and
limits of
Order.

18. Subject to the provisions of this Order the Trustees may instead of acquiring lands for the purpose of any aqueducts conduits or lines of pipes or deviations or diversions by this Order authorised acquire such servitudes over and rights in such lands as they may require for the purpose of from time to time constructing reconstructing placing laying inspecting maintaining cleansing repairing replacing enlarging adding to conducting or managing the same and may give notice to treat in respect of such servitudes and rights and may in such notice describe the nature thereof and the several provisions of the Lands Clauses Acts (inclusive of those with regard to limited owners and to arbitration and the summoning of a jury) shall apply to such servitudes and rights as fully as if the same were lands within the meaning of such Acts: Power to
acquire
servitudes.

Provided that as regards any lands taken or used by the Trustees for the purpose of laying aqueducts conduits or pipes therein where such aqueducts conduits or pipes are laid underground the Trustees shall not (unless they give notice to treat for such lands and not merely for servitudes therein) be required or entitled to fence off or sever such lands from the adjoining lands so that the owners or occupiers for the time being shall at all times after the completion of the works have the same rights of passing

A.D. 1904. over such lands for all purposes of or connected with the use or enjoyment of the adjoining lands as if such lands had not been taken or used by the Trustees:

Provided always that nothing herein contained shall authorise the Trustees to acquire by compulsion any such servitude in any case in which the owner in his particulars of claim shall require the Trustees to acquire the lands in respect of which they have given notice to treat for the acquisition of a servitude only and every notice to treat for the acquisition of a servitude shall be endorsed with notice of this proviso.

Power to
Trustees
and local
authorities
&c. to agree
as to supply
of water.

19. The Trustees may by agreement supply water in bulk beyond the limits of this Order to any owners and occupiers of lands and heritages and to any local authority or other public authority or person within the counties of Midlothian and Haddington from any of the mains conduits or pipes of the Trustees or from any of the reservoirs of the Trustees and the Trustees may contract with all or any such persons and authorities for such supply upon such terms and conditions and for such period or periods of time as they may agree and may also agree with any road authority for the laying maintaining and renewing of mains pipes or other works in along under or over roads and bridges and for the widening of any bridges or roads for the purposes of such supply on such terms and conditions as may be so agreed and the Trustees may upon giving three days' notice as provided for in section 30 of the Waterworks Clauses Act 1847 and also subject to the provisions of sections 31 and 32 of the said Act place proper and convenient surface boxes over air valves and hydrants and scour valves and sluices on any such roads Provided always that the Trustees shall not be required to afford any such supply to premises situated in the parish of Inveresk higher than one hundred and eighty feet above the level of the sea Provided further that such supply of water under this section shall not prejudicially affect or restrict the supply of water required within the limits of this Order Provided also that the supply of water by the Trustees under this section shall be subject to the consent of any local authority company or person supplying water under the authority of Parliament within the district so supplied.

Public water
rate.

20. The public water rate authorised to be assessed and levied by the Act of 1874 may from and after the commencement of this Order and subject to the provisions conditions and exemptions with respect to the said public water rate contained in the said Act be

assessed and levied of an amount not exceeding twopence in the pound of the annual value of all lands and heritages within the limits of compulsory supply. A.D. 1904.

21. The Trustees may at any time by agreement purchase acquire and hold any mines or minerals under any lands now owned by the Trustees or in which they possess wayleaves or which they may hereafter purchase acquire lease or use or through or in which any existing works aqueducts conduits or lines of pipes of the Trustees now or may hereafter pass and that upon such terms and conditions as may be so agreed. Acquisition of minerals by agreement.

22. The Trustees may in addition to any powers they now possess for recovering payment of the water rates and charges from any person effect such recovery by poinding and arrestment and any warrant which may at any time be granted by the sheriff for recovery of any water rates and charges under the provisions of the recited Acts and this Order shall also contain warrant to recover the same by poinding and arrestment. Further powers for recovery of water rates.

23. The Trustees may and they are hereby authorised at any time and from time to time if they think fit to make and grant allowances out of the revenues of the Trustees to aged and to disabled employees and to the dependants of any employees who may be serving with any of His Majesty's forces in time of war or emergency and with respect to such allowances the following provisions shall have effect (that is to say):— Allowances to employees.

(1) The cumulo amount of allowances which may be made under this section shall not exceed in any year the sum of five hundred pounds:

(2) The amount of any such allowance shall not in any case exceed one half the amount of the wage paid to such employee at the date of his retirement or disablement or call to serve as aforesaid:

(3) The granting of any allowance and the amount thereof the times of payment and the duration of the same and the power at any time to revise and alter or revoke the allowance shall be in the absolute discretion of the Trustees:

(4) The period of service of such employees (except in cases of temporary disablement and of employees called upon to serve with any of His Majesty's forces as aforesaid) shall be at least twenty years but such period need not imply continuous service for the full period of each year:

A.D. 1904.

(5) The Trustees shall consider each application and record their decision :

(6) Any sums so paid by the Trustees under the provisions of this section shall be a charge on the revenue of the year.

Estimates
&c. by
Trustees to
include pur-
poses of this
Order.

24. The estimate required to be made and the rates rents and charges authorised and required to be levied by the Trustees under and for the purposes of the recited Acts shall be made levied and charged so that the same shall not only include and be sufficient with the other rates and revenue of the Trustees for the purpose of defraying the annual sums or expenditure specified in the recited Acts but also the interest of any money which may be borrowed or raised under the provisions of this Order and the payment to the sinking funds and the expenses of administration and of maintaining and managing the undertaking authorised by the recited Acts and this Order and all other annual expenditure arising out of the exercise of the powers by this Order conferred.

As to
borrowing
powers in
recited
Acts.

25. The powers to borrow and raise money contained in the recited Acts and to grant security as therein and by the next following section provided for such borrowed money shall and may be exercised by the Trustees for the purposes of this Order as well as for the purposes of the recited Acts and the money so borrowed may be applied for the said purposes so far as the same are purposes to which capital is properly applicable.

Power to
borrow
additional
money.

26. In addition to any money which the Trustees have borrowed or raised or are authorised to borrow or raise under the recited Acts the Trustees may from time to time under the authority of this Order borrow or raise all such sums as they think requisite for the purposes of the recited Acts and this Order and for the purchase of lands and construction of works authorised by this Order and for the other purposes of this Order and of the undertaking not exceeding the sum of five hundred thousand pounds on the security of the several rates rents and charges leviable by the Trustees under the provisions of the recited Acts and this Order and on the other revenues of the Trustees and if after having borrowed or raised the said sum or any part thereof the Trustees pay off the same except by means of the sinking fund it shall be lawful for them again to borrow or raise the amount so paid off and so from time to time And all the provisions as to security reborrowing borrowing on cash account funding of debt

A.D. 1904.
—

granting of terminable annuities and application for judicial factor contained in the recited Acts with reference to the sums therein authorised to be borrowed shall subject to the provisions of this Order apply to the additional sums to be borrowed under this Order.

27. The provisions of section 51 of the Act of 1895 and of section 28 of the Act of 1898 as the same are amended by section 17 of the Order of 1901 with respect to the sinking fund thereby required to be created for the repayment of money borrowed under and for the works authorised by those Acts and that Order are hereby incorporated and shall as so amended extend and apply to any sums to be borrowed by the Trustees under the authority of this Order.

Sinking
fund.

28.—(1) In addition to the sinking fund provided in the recited Acts and in the immediately preceding section of this Order the Trustees shall after the expiry of five years from and after the completion of the Talla Waterworks and the introduction of the water supply from those works set aside out of revenue an annual sum of two thousand pounds and after the expiry of ten years from the said completion and introduction a further annual sum of two thousand pounds making thenceforward a total annual sum of four thousand pounds as a sinking fund for the redemption of the Edinburgh and District Water Annuities granted by the Trustees under the Act of 1869 so far as such annuities remain for the time unredeemed.

Sinking
fund for re-
demption of
annuities &c.

(2) The said annual sums and the income arising therefrom shall be invested in or on any security in or on which trust funds may be invested according to the law of Scotland or on mortgages of the Trustees for money borrowed for the purposes of the undertaking or by way of deposit in any of the banks in Scotland incorporated by Royal Charter or under the provisions of any Act of Parliament.

(3) The said sinking fund shall subject to the provisions of section 43 of the Act of 1869 be from time to time applied to the redemption of the said Edinburgh and District Water Annuities.

(4) So far as not so applied the said sinking fund may be from time to time applied to the redemption of mortgages or other capital indebtedness of the Trustees.

(5) Whenever any such annuity or mortgage or other loan shall have been redeemed out of the said sinking fund the Trustees shall annually pay into the said fund (in addition to the annual contribution of two thousand or four thousand pounds as the case

A.D. 1904. may be) the amount of such annuity or of interest on such mortgage or other loan which would have been payable if such annuity or mortgage or loan had not been redeemed.

(6) All annual payments into the said sinking fund shall cease when on a certificate of the auditor of the Trustees the accumulated amount thereof shall be equal to the capitalised value of such annuities existing at the time.

(7) The proviso to section 53 (Sinking fund) of the Act of 1874 shall not apply to any redemption of the said annuities under this section.

Application
of borrowed
money.

29. The several sums to be borrowed by the Trustees on mortgage under the authority of this Order shall be applied only to the purposes of the recited Acts and this Order for which capital is properly applicable.

Borrowing
power for
current
expenses.

30. The powers conferred on the Trustees by section 4 of the Act of 1880 and by section 4 of the Act of 1889 enabling them to borrow for current expenses as therein provided shall be held to be in addition to any powers of borrowing conferred by the recited Acts and this Order.

Saving
existing an-
nuities and
securities.

31. Nothing in this Order contained shall prejudice or affect the several preferences created by the Act of 1869 or any annuity debentures mortgages or assignments in security granted by the Trustees under authority of the recited Acts and subsisting at the commencement of this Order and the same shall during the continuance thereof be as valid and effectual in all respects as if the Act confirming this Order had not been passed and shall have priority to any money which may be raised under this Order Provided always that all securities granted by the Trustees for money borrowed or raised under this Order shall rank together *pari passu* without preference or priority the one over the other.

Protection
of lenders
from
inquiry.

32. Any person lending or paying money under the recited Acts or this Order to the Trustees shall not be bound to inquire as to the observance by the Trustees of any provisions of the recited Acts or this Order or of any Act incorporated therewith or be bound to see to the application or be answerable for any loss or non-application of such money or of any part thereof.

Application
of forms of
mortgage &c.

33. In borrowing money under this Order the mortgages and transfers of the same and the warrants for interest thereon shall be in the forms appended to the Act of 1874 as nearly as may be subject to the enactments of the Act of 1876 the Act of 1877 the

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Water Order Confirmation Act, 1904.

Act of 1880 the Act of 1889 the Act of 1895 the Act of 1898 and A.D. 1904.
the Order of 1901 but it shall not be necessary in any mortgages
which may be hereafter granted under the powers of the Trustees
to refer to the objects for which the money is borrowed.

34. The power of issuing interest warrants with mortgages Interest war-
under the Act of 1874 shall apply to all mortgages of the Trustees rants applic-
whether granted or to be granted before or after the commence- able to all
ment of this Order including the mortgage debt of the dissolved mortgages.
Edinburgh Water Company and any mortgages granted under the
Act of 1869 in payment or exchange for such mortgage debt or any
portion thereof.

35. Subject to the provisions of this Order any works con- New works
structed or which may be constructed and any lands which may be to form part
acquired under the authority of this Order and the powers and of 'Trustees'
provisions of this Order shall for all purposes whatsoever be and be undertaking.
deemed to be part of the undertaking of the Trustees.

36. All the powers and provisions contained in the recited Acts Application
or any of them with reference to the undertaking of the Trustees in of recited
so far as they are not repealed amended or altered by any of the Acts.
recited Acts and this Order shall be and the same are hereby so far
as applicable extended and applied to the purposes of this Order
and to the limits of compulsory supply and the limits of this
Order respectively.

37. All the costs charges and expenses incurred preparatory to Costs of
and in applying for obtaining and confirming this Order or in any Order.
way incidental thereto shall be paid by the Trustees out of the rates
to be levied by them or other revenue of the Trustees or moneys
borrowed or to be borrowed on the security of the same and in case
such costs are paid out of moneys borrowed the same shall be repaid
within five years after the commencement of this Order.

The SCHEDULE referred to in this Order.

AGREEMENT between the Right Honourable SIDNEY HERBERT
ELPHINSTONE LORD ELPHINSTONE of Carberry on the one
part and the EDINBURGH AND DISTRICT WATER TRUSTEES
(hereinafter called "the Trustees") on the other part.

WHEREAS the Trustees have applied under the Private Legislation Procedure
(Scotland) Act 1899 for a Provisional Order (hereinafter called "the Order")
intituled "Provisional Order to authorise the Edinburgh and District Water

A.D. 1904. — “ Trustees to construct additional works and to sanction certain works already
“ constructed to postpone the obligation of constant supply and pressure
“ to authorise the purchase of additional lands to establish an employees’
“ allowance fund to increase the public water rate to borrow further money
“ and for other purposes ” :

And whereas it is proposed by the Order to authorise the Trustees to construct and maintain inter alia a service reservoir (Work No. 7) (therein called “ Carberry Mains Service Reservoir ”) in the fields Nos. 97 and 121 or one of them on the twenty-five inch Ordnance Survey map (1894) of the parish of Inveresk which fields are the property of the said Lord Elphinstone :

And whereas the said Lord Elphinstone having presented a petition against the Order has now agreed on the terms and conditions hereinafter written to withdraw the same :

Therefore the parties have agreed and hereby agree as follows :—

First In the event of the Trustees intimating to the said Lord Elphinstone at any time within three years from the date of the passing of the Order their intention to acquire the area of ground after mentioned the said Lord Elphinstone agrees to sell and the Trustees agree to purchase for the purposes of the said Carberry Mains Service Reservoir and pipes leading to and from the same (first) that area of ground part of the said field No. 121 delineated and coloured red on the key plan forming part of the plan subscribed by the parties as relative hereto with right of access and egress to and from the said area of ground over the road delineated and coloured yellow on the said plan and (second) a perpetual servitude of laying and maintaining along the lines delineated and coloured red on the said key plan and marked “ inlet ” “ outlet ” and “ scour ” respectively a twelve-inch inlet pipe to said reservoir a twelve-inch outlet pipe therefrom and a scour and overflow pipe therefrom to the burn with right to the Trustees so far as the said Lord Elphinstone can confer the same to discharge water from the said reservoir into the said burn by the said scour and overflow pipe and with right also of access to the said inlet outlet and scour and overflow pipes for the purpose of inspecting repairing and maintaining the same the Trustees being bound to pay all damage to the surface of the lands whether belonging to the said Lord Elphinstone or to any other person or persons and crops and others thereon which may be occasioned by the said discharge of water to the said burn or by the exercise of the right of inspecting maintaining and repairing the said pipes and to free and relieve the said Lord Elphinstone and his successors of all claims in respect of such damage.

Second The compensation or price to be paid by the Trustees to the said Lord Elphinstone in respect of the acquisition by them of the subjects hereby agreed to be sold shall be determined failing agreement by arbitration in terms of the Lands Clauses Consolidation (Scotland) Act 1845 and the conveyance of the said subjects to the Trustees shall be granted in terms of and under the reservations contained in the said Lands Clauses Consolidation (Scotland) Act and the Waterworks Clauses Acts 1847 and 1863 and under

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Water Order Confirmation Act, 1904.

reservation of all rights and claims competent to the said Lord Elphinstone's tenants. A.D. 1904.

Third Notwithstanding anything to be contained in the Order as passed the Trustees shall not construct the said Carberry Mains Service Reservoir elsewhere or otherwise than on or within the said area of ground hereby agreed to be sold and (if and when constructed) in accordance with the general plan elevations and sections which form part of the said plan signed by the parties as relative hereto.

Fourth This agreement shall be subject to the approval of the Secretary of State for Scotland and Parliament and shall be scheduled to and confirmed by the Order.

Fifth In the event of the Order not being passed into a law this agreement shall become null and void except as regards article sixth hereof.

Sixth The expenses of and in connection with this agreement shall be borne by the Trustees and both parties consent to registration for preservation.

In witness whereof these presents written on this and the preceding page by Hugh Gillespie Armstrong clerk to Messrs. Dundas and Wilson clerks to the signet Edinburgh (the words "Lord Elphinstone" being interlined before subscription so as to be read after the word "Elphinstone" in the second line of page first) are together with the said plan executed in duplicate as follows They are sealed with the common seal of the said Edinburgh and District Water Trustees and are subscribed by the Right Honourable Sir Robert Cranston knight lord provost of the city of Edinburgh chairman of and by William Boyd Writer to the Signet Edinburgh clerk to the Trustees for and on behalf of and as authorised by them at Edinburgh on the ninth day of June nineteen hundred and four before these witnesses Francis Wilkinson trust officer to the Trustees and Alexander Duncan clerk to the said William Boyd and they are subscribed by the said Lord Elphinstone at London on the fourteenth day of said month of June and year last mentioned before these witnesses John Dupuis Cobbold Holywells Ipswich and Joseph Barford butler to the said Lord Elphinstone.

JOHN D. COBBOLD witness

ELPHINSTONE

JOSEPH BARFORD witness

F. WILKINSON witness

ROBERT CRANSTON L.P.

ALEX. DUNCAN witness

chairman

WILLIAM BOYD clerk.

Seal.

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